

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
AUBREY TOWLER

Plaintiff,

Index No.: _____

-against-

SUMMONS

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER KENNY TUCKER
NEW YORK CITY POLICE OFFICER FADUGBA and
THE KINGS COUNTY DISTRICT ATTORNEYS OFFICE,

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED: to answer the complaint in this action and to serve a copy of your answer, or if the Complaint is not served with this Summons, to serve Notice of Appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
February 9, 2015

LAW OFFICES OF LONNIE HART JR., P.C.
Attorney(s) for the Plaintiff
26 Court Street, Suite 714
Brooklyn, New York 11242
(718) 246-8200

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
AUBREY TOWLER

Plaintiff,

-against-

Index No.: _____

COMPLAINT

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER KENNY TUCKER
NEW YORK CITY POLICE OFFICER FADUGBA and
THE KINGS COUNTY DISTRICT ATTORNEY'S OFFICE,

Defendants.

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1) Plaintiff, AUBREY TOWLER, by his attorney, LONNIE HART, JR., complaining of the Defendants, respectfully shows and alleges as follows:

2) That at all times mentioned herein, the Plaintiffs, AUBREY TOWLER (hereinafter PLAINTIFF) was and still is a resident of Kings County, City and State of New York.

3) That at all times hereinafter mentioned, the Defendant, CITY OF NEW YORK, (hereinafter CITY) was and still is a municipal corporation duly organized and existing under the laws of the State of New York. It is authorized by law to maintain a Police Department, and to maintain District Attorney's Offices in each of its five boroughs, including Defendant, the KINGS COUNTY DISTRICT ATTORNEY'S OFFICE (hereinafter KCDA), which acts as its agents in the area of law enforcement to members of the public and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a NYPD and KCDA, and the employment of police officers, prosecutors and other employees of those agencies, as said risk attaches to the public consumers of the services provided by the New York City Police Department.

4) That at all times hereinafter mentioned, the Defendant, NEW YORK CITY POLICE DEPARTMENT (hereinafter NYPD) was and still is an agency of the CITY responsible for law enforcement.

5) Upon information and belief, at all times relevant to this complaint the individual Defendant NEW YORK CITY POLICE OFFICER KENNY TUCKER, (hereinafter P.O. TUCKER) was and still is a New York City police officer employed by the Defendants NYPD and CITY OF NEW YORK.

6) Upon information and belief, at all times relevant to this complaint the individual Defendant NEW YORK CITY POLICE OFFICER FADUGBA (hereinafter P.O. FADUGBA) was and still is a New York City police officer employed by the Defendants NYPD and CITY OF NEW YORK

7) That the plaintiff sues the individual Defendant(s) in their official capacities and at all times hereinafter mentioned, the individual Defendant(s) were acting within the course of their employment and/or official policy, practice, custom or usage of the Defendants NYPD, and THE CITY OF NEW YORK and under color of State law, that is, under color of Constitution, Statutes, laws, ordinances, rules, regulations, of the United States, City and State of New York.

8) That Notice of Claim to sue, as required by Section § 50 (e) of the General Municipal Law of the State of New York, was served by the plaintiff upon the Defendant, CITY OF NEW YORK, on or about September 3, 2014, that at least thirty (30) days have elapsed since the demand or claim upon which this action is predicted was presented to the CITY OF NEW YORK for adjustment and that it has neglected and/or refused to make adjustment or payment thereof, and that this action is commenced within three years after the cause of action accrued.

STATEMENT OF FACTS

9) On or about January 30, 2011, at approximately 2:50a.m. In the vicinity of East 46th Street and Flatlands Avenue, Kings County New York, AUBREY TOWLER was falsely arrested and falsely imprisoned by members of the New York City Police Department.

10) On the above date and location, members of the New York City Police Department charged AUBREY TOWLER with Driving While Intoxicated, an unclassified misdemeanor. Plaintiff maintained he had not consumed any alcoholic beverages.

11) AUBREY TOWLER was accused and arrested for crimes he did not commit by P.O. FADUGBA and P.O. TUCKER without probable cause or reasonable suspicion that he had committed any crime.

12) AUBREY TOWLER was driving at the above location when he was pulled over for unknown reasons by PO FADUGBA. Upon information and belief, PO FADUGBA called PO TUCKER on his personal cellphone to come to the scene and arrest plaintiff for driving while intoxicated. PO TUCKER did not observe plaintiff operating any motor vehicle.

13) AUBREY TOWLER was arrested and taken to the Intoxicated Driver Testing Unit. Despite agreeing to take a breathalyzer exam and blowing into the machine, and getting a reading, the defendants deemed that the claimant refused to take the test. The officers at the testing unit also failed to give the claimant proper refusal warnings as required by law.

14) AUBREY TOWLER was held in custody for approximately 24 hours.

15) While the criminal matter was pending, the District Attorney admitted that Defendant FADUGBA, the only officer who supposedly observed the plaintiff operating a motor vehicle while intoxicated, was in the military and deployed overseas. The District

Attorney refused to dismiss the case and claimant was subjected to more than three and a half years of court dates.

16) The criminal matter was eventually set down for pre trial hearings where only defendant Tucker testified. The court granted defense motion to suppress any alleged statements, and the “refusal” as the court noted that the proper warning were not given. It should be noted that the District Attorney failed to produce Sargent Stewart-Perry who may have been a witness to the alleged car stop of claimant.

17) In total, plaintiff had to attend approximately 25 court dates before the criminal matter was resolved. On each court date, plaintiff had to take a day off from work. As a employee who works for an hourly wage of eighty-six dollars an hour, plaintiff lost over seventeen thousand dollars in income to fight the case. On or about July 22, 2014, the criminal charges against AUBREY TOWLER were dismissed and sealed.

AS AND FOR A FIRST CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK

18) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “17” of the complaint with the same force and effect as if fully set forth herein.

19) That as the employer of the individual Defendants, **P.O. TUCKER** and **P.O. FADUGBA** at the times of their negligent conduct as set forth herein, the Defendant, **CITY OF NEW YORK**, is liable to the Plaintiff under the laws of the City and State of New York, for allowing said defendant to act under color of law.

20) That as a proximate result of the aforesaid acts and omissions by the Defendant **CITY** in hiring, training and employing the individual defendants, the Plaintiff has been

deprived of his rights under the Fourth and Fourteenth Amendments of the United States Constitution, Sections § 1983 and § 1988 of Title 42 of the United States Code, and under the laws of the City, and State of New York. The Plaintiff has suffered general and pecuniary damages.

AS FOR A SECOND CAUSE OF ACTION
AGAINST THE NEW YORK CITY POLICE DEPARTMENT

21) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “20” of the complaint with the same force and effect as if fully set forth herein.

22) That the Defendant, NYPD, was negligent in the hiring, supervision, training and instruction of the individual Defendants, P.O. TUCKER and P.O. FADUGBA.

23) That as a direct and proximate result of the deliberate indifference, carelessness, and/or recklessness of the Defendant, NYPD, with regard to the proper training and supervision of its officers/employees, the Plaintiff has been deprived of his rights under the Fourth and Fourteenth Amendments of the United States Constitution, Sections § 1983 and § 1988 of Title 42 of the United States Code, and under the laws of the City, and State of New York.

AS AND FOR A THIRD CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, AND INDIVIDUAL DEFENDANTS, P.O. TUCKER AND P.O.
FADUGBA
“CIVIL RIGHTS VIOLATION”

24) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “23” of the complaint with the same force and effect as if fully set forth herein.

25) That the actions of defendants heretofore described resulting from the January 30, 2011, false arrest, detention and confinement deprived Plaintiff of rights, privileges and immunities as guaranteed under the United States Constitution, Amendments One, Four, Five and Fourteen, the New York State Constitution, the Civil Rights Acts, 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988 and the complained of conduct was either the result of an official policy or unofficial custom, including, but not limited to, policies and customs concerning the hiring, training, supervision, retention and discipline of the CITY'S agents, servants and/or employees and those involving the arrest, detention and prosecution of individuals, including and especially, those persons such as the Plaintiff who are of Hispanic ethnic descent.

26) That the Defendants established a custom policy and/or practice of encouraging, approving and/or tolerating the use by the NYPD of acts of misconduct against civilians, and especially those civilians who are of African/West Indian descent, and subsequent attempts to conceal such action by failing to adequately train, supervise and discipline its agents, employees and offices.

27) That the Defendants were deliberately indifferent to the use of improper procedures in the detention and arrest of civilians, and especially those civilian who are of African/West Indian descent, and established a custom policy and/or practice of encouraging, approving and/or tolerating the use of said improper procedures by the NYPD and subsequent attempts to conceal such actions by failing to adequately train, supervise, and discipline its agent, employees and offices.

28) The Defendants have deprived Plaintiff of his liberty in violation of his civil and constitutional rights set forth in the United States Constitution, 42 U.S.C. § 1983 and the Constitution of the State of New York.

- 29) The Defendants actions were undertaken under the color of law and would not have existed but for said Defendants' use of their official power.
- 30) That the Defendants conspired with each other and acted in concert to discriminate against and deprive the Plaintiff of his Constitutional and Civil Rights.
- 31) The supervisors and policy making officers of defendant CITY and its NYPD defendants P.O. TUCKER and P.O. FADUGBA, as a matter of policy, are deliberately indifferent to said practices and have failed to take steps to terminate the herein above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.
- 32) The Defendant CITY has failed to properly and effectively train its agents, servants and/or employees, including defendants P.O. FADUGBA and P.O.TUCKER with regard to the proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.
- 33) The Defendant CITY has sanctioned the policy and practices heretofore described through its deliberate indifference to the effect of such policy and practices upon the constitutional rights of the Plaintiff and others similarly situated.
- 34) That the Defendants' motivations were in contravention of the United States Constitution and the Constitution of the State of New York.
- 35) By reason of the foregoing, the Plaintiff has been damaged and suffered serious and severe emotional distress and emotional harm as a result of these deprivations of constitutional and civil rights.

AS AND FOR A FOURTH CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
"FALSE ARREST"

36) That the plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “35” of the complaint with the same force and effect as if fully set forth herein.

37) That the aforesaid actions of the individual Defendants constitute false arrest and/or imprisonment of the Plaintiffs in violation of the Constitution and laws of the City and State of New York, and United State of America.

38) That the Defendants P.O. TUCKER and P.O. FADUGBA recklessly, wrongfully, maliciously and without probable cause physically detained plaintiff AUBREY TOWLER and placed him under arrest.

39) That as a result of the false arrest plaintiff AUBREY TOWLER was handcuffed and incarcerated for approximately 24 hours.

40) That as a proximate result of the aforesaid acts and omissions by the Defendants, the Plaintiff has suffered general, pecuniary and compensatory damages.

AS AND FOR A FIFTH CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
“FALSE IMPRISONMENT”

41) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “40” of the complaint with the same force and effect as if fully set forth herein.

42) Defendants P.O. FADUGBA and P.O. “J D” showed utter disregard to the truth and falsely brought criminal charges against plaintiff AUBREY TOWLER, which caused him to be incarcerated for approximately 24 hours.

43) Defendants P.O. FADUGBA and P.O. FADUGBA knew or should have known that the charges were false and his incarceration unjustified.

44) That as approximate result of the aforesaid acts and omissions by the Defendants, the Plaintiff has suffered general, pecuniary and compensatory damages.

AS AND FOR A SIXTH CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
“EMOTIONAL DISTRESS”

45) That the Plaintiffs repeat and re-allege the allegations contained in paragraphs “1” through “44” of the complaint with the same force and effect as if fully set forth herein.

46) That the aforesaid actions of the individual Defendants constitute intentional infliction of emotional distress on the Plaintiffs under the laws of the City, State of New York, as a result of the incarceration and prosecution of Plaintiffs AUBREY TOWLER sustained serious emotional injuries.

47) That as a Proximate result of the aforesaid acts and omissions by the Defendants; the Plaintiffs has suffered both general and pecuniary damages and severe emotional distress.

AS FOR A SEVENTH CAUSE OF ACTION
AGAINST THE INDIVIDUAL DEFENDANTS
AND THE KINGS COUNTY DISTRICT ATTORNEY'S OFFICE
MALICIOUS PROSECUTION

48) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs “1” through “47” of the complaint with the same force and effect as if fully set forth herein.

49) That the conduct of Defendants P.O. FADUGBA and P.O. “J D” complained of in this complaint specifically, they did knowingly initiate the criminal prosecution of

Plaintiff by swearing to under oath a fabricated criminal court complaint.

50) Defendants P.O. TUCKER and P.O. FADUGBA manufactured, or caused to be manufactured, false, unreliable and/or misleading “evidence” intending it to be used by the prosecution in determining whether to initiate criminal proceedings against Plaintiff, which “evidence” was used by the prosecution.

51) By virtue of the foregoing, Defendants FREIN and ZAMBITO, with actual malice, initiated and continued or caused the initiation and continuance of, criminal proceedings against Plaintiff for which they knew or should have known there was no probable cause and for which in fact there was no probable cause and thereby caused Plaintiff to be deprived of his liberty. Such proceeding ultimately was terminated in Plaintiff’s favor.

52) The aforementioned conduct of Defendants FREIN and ZAMBITO which committed, operated to deprive Plaintiff of his rights under the constitution and laws of the United States, to (a) Not be prosecuted upon false, fabricated, manufactured, misleading or inherently unreliable "evidence" including statements and documents and; (b) Not be deprived of his liberty absent probable cause to believe they have committed a crime in violation of their rights under the Fourth and Fourteenth Amendments to the United States Constitution; and

53) The foregoing violations of Plaintiff’s federal constitutional rights by Defendants FREIN and ZAMBITO which substantially, proximately, and foresee ably caused the initiation and continuation of Plaintiff’s criminal prosecution, loss of liberty and other injuries and damages.

54) The foregoing violations of Plaintiff’s rights amounted to Constitutional torts and within the scope of Defendants FREIN and ZAMBITO employment and authority.

55) Defendants FREIN and ZAMBITO committed the foregoing violations of Plaintiff's rights knowingly, intentionally, willfully and/or with deliberate indifference to Plaintiff's constitutional rights or to the effect of such misconduct upon Plaintiff's constitutional rights.

56) As a result of the foregoing, plaintiff was deprived of his liberty, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses including but not limited to counsel fees for criminal defense attorney and was otherwise damaged and injured.

AS FOR A EIGHTH CAUSE OF ACTION
AGAINST ALL DEFENDANTS

57) That the Plaintiff repeats and re-alleges the allegations contained in paragraphs "1" through "56" of the complaint with the same force and effect as if fully set forth herein.

58) At all times material to this complaint, Defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT and through the KINGS COUNTY DISTRICT ATTORNEY'S OFFICE, and through the individual Defendants had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

59) At all times material to this complaint, Defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT and through the KINGS COUNTY DISTRICT ATTORNEY'S OFFICE and through the individual Defendants and other employees, had de facto policies, practices customs, and usages of failing to properly train, screen, supervise, or discipline employees, police officers, prosecutors, and of failing to inform the individual Defendants' and other employees' supervisors of their need to train, screen, supervise or discipline said Defendants and employees. These policies, practices, customs and usages were a direct and

proximate cause of the unconstitutional conduct alleged herein.

60) At all times material to this complaint, Defendant CITY, acting through its NEW YORK CITY POLICE DEPARTMENT, and through the individual Defendants, has de facto policies, practices, customs, and usages of encouraging and/or tacitly sanctioning the cover-up of other law enforcement officers' misconduct, through the fabrication of false accounts and evidence and/or through "the blue wall of silence". These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

61) Over a period of time the KINGS COUNTY DISTRICT ATTORNEY'S OFFICE engaged in a pattern of allowing witnesses to manufacture, or caused to be manufactured, false, unreliable and/or misleading testimony intending it to be used to wrongfully convict criminal defendants.

62) Over a long period of time the KINGS COUNTY DISTRICT ATTORNEY'S OFFICE has engaged in a pervasive pattern of misconduct designed and practiced to systematically and with deliberate indifference deny basic rights to defendants under the Constitution of the United States.

63) Over a period of time the KINGS COUNTY DISTRICT ATTORNEY'S OFFICE has engaged in an unlawful office-wide policy, culture and practice of aggressively flaunting the Constitution of the United States by withholding Brady material to criminal defendants including the plaintiff herein.

64) The conduct of the NEW YORK CITY POLICE DEPARTMENT and the KINGS COUNTY DISTRICT ATTORNEY'S OFFICE in the within case is part of an ongoing pattern of corruption, indifference and ineptitude that is the result of a system wide lack of proper training, guidance and supervision.

65) As a result of the foregoing, plaintiff was deprived of his liberty, experienced pain and suffering, psychological and emotional injury, great humiliation, costs and expenses including but not limited to counsel fees for criminal defense attorney and was otherwise damaged and injured.

WHEREFORE, Plaintiff requests judgment against individual Defendant, P.O. TUCKER, P.O. FADUGBA, KCDA, NYPD and Defendant, CITY OF NEW YORK, as follows:

1. As against the individual Defendants, general and Compensatory damages in the sum of TEN MILLION DOLLARS (10,000,000.00) on the Third, Fourth, Fifth, Sixth, and Seventh causes of action,

2. As against the individual defendants, punitive damages in the sum of TEN MILLION DOLLARS (10,000,000.00) each on the First, Second, Third, Fourth, Fifth, Sixth, and Seventh causes of action, and

3. As against Defendant, CITY OF NEW YORK, General and Compensatory damages in the sum of TEN MILLION (10,000,000.00) on the first, third and eighth causes of action asserted against it, and

4. As against Defendant, NYPD, General and Compensatory damages in the sum of TEN MILLION (10,000,000.00) on the second ,third , fourth, fifth, sixth and seventh causes of action asserted against it, and

5. The cost of this action and any and all attorney fees associated with this action,

6. and such other and further relief as may be just and proper.

Dated: February 9, 2015
Brooklyn, New York

Lonnie Hart, Jr., P.C.
by: LONNIE HART, JR., ESQ.
26 Court Street, Suite 714
Brooklyn, NY 11201
(718) 246-8200

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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AUBREY TOWLER

Plaintiff,

Index No.: _____

-against-

CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
NEW YORK CITY POLICE OFFICER KENNY TUCKER
KINGS COUNTY DISTRICT ATTORNEY'S OFFICE
and NEW YORK CITY POLICE OFFICER FADUGBA,

Defendants.

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SUMMONS AND COMPLAINT

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LAW OFFICES OF LONNIE HART JR. PC
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Brooklyn, New York 11242
(718) 246-8200

To: New York Corporation Counsel
100 Church Street, 4th Floor
New York, New York 10007

Attorney for:

Service of a copy of the within

is hereby admitted.

Dated: Brooklyn, New York
February 9, 2015

Lonnie Hart, Jr, Esq.
Attorney for Plaintiffs